

TERMS AND CONDITIONS

These Terms and Conditions ("Terms") govern all sales, services, and related engagements between AM GROUP ("Company", "we", "us") and its customers ("Customer", "you").

1. SCOPE OF AGREEMENT

By placing an order, accepting a quotation, or engaging in services with AM GROUP, the Customer acknowledges and agrees to be bound by these Terms and Conditions. All goods, items, machines, equipment supplied by AM GROUP are subject to this agreement. No other terms or conditions, including Customer purchase orders or verbal communications, shall apply unless expressly agreed in writing by both AM Group and the client.

2. PRODUCT SALES

2.1 Product Description and Use

AM GROUP sells commercial-grade kitchen equipment and appliances ("Products") intended strictly for professional use in foodservice and hospitality establishments (e.g., restaurants, hotels, catering facilities).

- Customers/Clients must provide the right information, design plans, floor area, CAD file and any other documents which will furnish the proper guidance for AM Group to execute and analyze project site for the equipment to have the right fit and electrical provision. Which will ensure the suitability of a Product for its intended purpose, operational environment, and compliance with local codes and regulations.
- All product information (including dimensions, power ratings, capacity, material, etc.) is provided in good faith and will be based on the reequipments needed by the client. Any changes will be communicated immediately on the official channels i.e. email address. As soon as confirm by the client, AM Group will proceed with the modification and changes.

3. Order Lock-in and Payment Terms

All kitchen equipment of AM Group, are made to order and are directly imported from Europe. This assures that the quality and brand the company carries is world class. Hence, AM Group offers top of the line, luxurious yet highly functional product line suitable to F&B, Hotels, Restaurants industry. With that, price on the quotation provided is in accordance

current exchange rate between peso and euro/dollar. The market volatility which resulted to erratic business behavior, has a strong impact on the business operation. With that, any changes which it will cause on prices and shipment position will be communicated well to clients/customers by the account managers. The client/customer must understand the issue is beyond the control of the company.

The signed client purchase order, already indicates the payment terms. This will be the basis of the billing, sending of sales invoice, or progress billing. As soon as it is signed and submitted to AM Group, no modifications will be done without written request. But if orders have been placed and manufacturing the machine is on-going, replacing the unit requested is highly discouraged.

4. KITCHEN DESIGN AND PROJECT ASPECT

4.1 Scope of Work

AM GROUP provides design consultancy, layout planning, fabrication, and installation services. The scope of services is strictly defined in the signed project quotation or contract. This will ensure proper alignment with the client/s and provide suggestions or recommendations on how to properly optimize kitchen design for the equipment.

4.2 Modifications & Change Orders

Requests for changes to kitchen design must be done properly, either through written notice, or an email sent to AM Group Project lead. Any changes raised, or clarifications will be addressed as soon as possible, and an agreement, document, or design modification done will be signed by both parties. As proof of acceptance and compliance to modification and changes raised.

4.3 Completion and Acceptance

Upon practical completion, the clients shall inspect and sign off on the work. If no formal sign-off occurs within 7 calendar days of notification of completion, the work shall be deemed accepted.

5. PRODUCT INSTALLATION AND OPERATION

- AM GROUP will use its best endeavors to deliver and install the products, items, machines, equipment on the agreed date, but will not be liable for delays due to circumstances outside the control of the company i.e. site is not yet ready or access to the site is too restrictive due to pending deliverables of other contractors.

- All provisions for power supply, water supply, drainage and other relevant aspects for the machines, equipment to function properly will be checked and tested ahead of time by the AM GROUP technical division before the scheduled installation will push through. For Client/Customer which is on a project based, AM GROUP will provide such support every phase of the installation to ensure that the right fit out and delays will be avoided.
- Should the Client/Customer for whatever reason, decided to delay the installation date previously agreed. The Client/Customer must provide a written notice to AM GROUP ahead of time. To ensure that no resource will be wasted i.e. tracking services, manpower schedule.
- Should the Client/Customer have opted for the early delivery of machines, items, equipment and the site are not yet ready. It is the responsibility of the Client/Customer to provide the right space big enough to accommodate the items, machines, products, equipment being requested for early delivery. Upon thorough evaluation of the AM GROUP technical team, that the recommended place by the Client/Customer is safe enough to store, temporarily place the equipment because is it free from any moisture, water ways, fire hazard, flood prone area. AM GROUP will proceed with the delivery of the items, machines, equipment ordered by the Client/Customer. A form will be provided as proof that it was accepted by the Client/Customer.
- The technical division of AM Group will ensure that the equipment ordered will be installed properly, tested, and commissioned as part of its standard equipment sales. Prior to installation for projects which will need design plans, AM Group technicians will provide its services during the construction and preparation of the site. To ensure, the right fit outs are in place and power sources are available.
- During the installation process, AM GROUP technical division will provide advice, recommendations, and guidelines related to equipment utilization, function, maintenance, cleaning, best operating practices, and other relevant considerations regarding the equipment bought and installed. The goal is to make sure that AM GROUP is a partner of the client/customer in the execution, initiation of the project. And avoid situations which might void the warranty of the equipment.

6. Product Availability and Substitution

- AM GROUP makes every effort to supply Products as ordered. However, due to changes in supplier stock or manufacturing issues which happened during the production of the order, AM GROUP may substitute equivalent models with similar specifications, subject to Customer approval. Which will be communicated as soon as possible.
- Delivery timelines are provided to provide ample time for the suppliers/manufacturers to accomplish the items, machine, equipment requested and approved by the client/customer. However, there will instances or situations which will beyond the control of AM GROUP, i.e. supply chain disruptions caused by conflict, natural calamities affecting the shipping route.

7. AFTER-SALES SUPPORT & MAINTENANCE

7.1 Support Eligibility

- All equipment supplied by AM Group is automatically part of the after sales support and onsite maintenance within warranty period. AM Group, technicians will offer proper guidelines, basic trainings on the handling and operating the equipment.
- AM GROUP reserves the right to charge service fees for call-outs, diagnostics, or repairs for non-covered items or projects or after the warranty period has ended.

7.2 Pre-requisite Free Support

Free repair or technical assistance is subject to the following conditions:

- The issue might arise from a proven fault in materials or workmanship, and should have been reported as soon as the problem was noticed and only AM Group technicians are the first one to handle the equipment, avoid instructing internal or client connected technicians to attend to the problem to avoid nullifying the benefits intended i.e. free maintenance for basic parts, change of item should the issue is proven to be production defect.
- The Customer must provide reasonable access the area and documentation as to provide the right information needed to address the problem and avoid further damage to the machine.

- The Customer must not have altered or repaired the installation without prior authorization. Immediately raise the concern to AM GROUP tech support hotline to properly attend to the concern right away.
- AM GROUP, will always be ready to extend support during warranty period and the approval of the PMS engagement.
 - Regular Answer call time
 - Emergency calls
 - Holidays n night shifts

8. Warranty Coverage

Products **only** come with a warranty **if it is explicitly stated** in the official quotation, invoice, or a separate written warranty certificate issued by AM GROUP.

8.1 Where a warranty applies:

- Warranty coverage is limited to manufacturing defects in materials or workmanship under normal use and maintenance, for the stated warranty period only.
- Warranty coverage does not include:
 - Normal wear and tear
 - Damage caused by mishandling, negligence, improper cleaning or maintenance
 - Use of the Product outside of its intended purpose
 - Faults due to electrical surges, water damage, fire, or acts of nature
 - Unauthorized modifications, servicing, or installations not performed by AM GROUP or its accredited technician

8.2 Warranty Claim Procedure

If a Product covered by warranty appears to be defective, the Client must notify AM GROUP in writing within the warranty period and submit the following:

- A detailed description of the issue.
- The original proof of purchase (sales invoice or delivery receipt).
- Installation report (if applicable).
- Photographs and/or videos clearly showing the defect.

Upon receipt of the claim, AM GROUP reserves the

right to conduct a thorough investigation before approving any repair, replacement, or credit note. This investigation process shall include, but is not limited to, the following steps:

a. Initial Review

AM Group technical team will assess the submitted documentation and media to determine if the issue is consistent with known manufacturing defects.

b. On-site Inspections (if necessary)

If the cause of the issue cannot be verified remotely, AM Group will dispatch a technician to the site to inspect the equipment.

- The client shall allow full, unrestricted access to the product, including utility connections and surrounding infrastructure.
- If the equipment has been moved, altered, or disassembled before inspection, warranty is voided immediately.

c. Testing and Diagnosis

AM Group Technical Team will perform diagnostic testing to determine:

- Whether the fault was caused by misuse, improper handling, or unauthorized repairs.
- Whether the fault is covered by manufacturer warranty.
- Whether environmental or utility issues (e.g. poor ventilation, unstable voltage, blocked drains). Contributed to the damage.

d. Outcome of the investigation

Once the investigation is complete, AM Group shall notify the client in writing with one of the following outcomes:

- Approve Claim – the issue is covered under warranty. AM Group will, at its discretion, proceed with free repair and part replacement.
- Reject Claim – The issue is not covered under warranty, or warranty is voided after the result of thorough evaluation. In this case:

1. The client may request a quotation for paid repairs.
2. If the client refuses, no further action is required by AM Group.

9. Risk and Title

- To avoid the risk of loss or damage to the equipment upon delivery to the site of the project. AM GROUP will spearhead the logistics process by tapping its most trusted transportation provider. Every step of the way, AM GROUP will monitor and check the status, road situation, site condition. This is again part of the service AM GROUP extends to its clients/customer.
- Title and ownership of all Products remain with AM GROUP until full payment has been received.

10. LIMITATION OF LIABILITY

In no event shall AM GROUP's liability exceed the price paid for the specific Product or service giving rise to the claim. We are not liable for:

- Delays due to third-party suppliers, force majeure, or regulatory issues.
- Customer's loss due to operational downtime or delays in project delivery.

11. COMPLAINTS AND DISPUTES

11.1 Notice Requirement

All complaints must be submitted in writing within 3 calendar days from delivery or service completion. Failure to notify AM GROUP within this timeframe waives the right to dispute.

11.2 Resolution Process

AM GROUP shall evaluate the complaint and, where valid, provide rectification. No claim shall justify withholding of payment unless mutually agreed in writing.

11.3 Jurisdiction

This agreement shall be governed by the laws of [Insert Jurisdiction - e.g., the Republic of the Philippines]. Any dispute shall be submitted to the exclusive jurisdiction of the competent courts in Makati City.

12. GENERAL TERMS

12.1 Force Majeure

AM GROUP shall not be held liable for any failure to perform, or any delay in the performance of, any of its obligations under this Agreement (including delivery, installation, or servicing) if such failure or delay is caused by events or circumstances beyond its reasonable control ("Force Majeure Event").

Force Majeure Events shall include, but are not limited to:

- Acts of God (e.g., typhoons, earthquakes, floods, fires, lightning)
- War, armed conflict, insurrection, terrorism, or civil disorder.
- Epidemics, pandemics, or outbreaks of infectious disease (including government-imposed lockdowns)
- Strikes, labor disputes, lockouts, or other industrial disturbances
- Acts of government or public authority, including trade restrictions, customs delays, embargoes, or import/export bans.
- Power failure, utility service disruption, internet outage, or transport system failure
- Shortages or delays in availability of materials, components, or labor beyond AM GROUP's control
- Accidents or equipment breakdowns beyond AM GROUP's control

If a Force Majeure Event occurs:

- AM GROUP shall notify the Client as soon as reasonably practicable.
- AM GROUP's obligations shall be suspended for the duration of the event, and

timelines for performance will be extended accordingly.

- If the Force Majeure Event continues for more than thirty (30) days, either party may terminate the affected portion of the Agreement by written notice, without liability to the other.
- For the avoidance of doubt, delays caused by subcontractors or suppliers shall also be considered Force Majeure if the root cause is outside AM GROUP's control.

12.2 Severability

If any provision of these Terms or any part thereof is determined to be invalid, illegal, or unenforceable under applicable law:

- Such provision shall be severed only to the extent necessary to render it valid and enforceable.
- The remainder of the Terms shall remain in full force and effect, and shall be interpreted so as to best give effect to the original intent of the parties.
- If the invalid or unenforceable provision is essential to the Agreement's legal effect, the Parties shall negotiate in good faith to replace it with a lawful and enforceable alternative that closely matches the original purpose.

12.3 Entire Agreement

These Terms and Conditions, together with any signed quotations, project contracts, annexes, or written communications expressly incorporated herein:

- Constitute the entire agreement between AM GROUP and the Client relating to the sale, delivery, installation and/or servicing of products.
- Supersede all prior oral or written negotiations, understandings, proposals, or correspondence between the Parties on the subject matter.

No amendment or modification of these Terms shall be valid unless made in writing and signed by an authorized representative of both parties.

Each Party acknowledges that in entering into the Agreement, it has not relied on any representation, warranty, or statement that is not expressly set out herein.

This Agreement shall be governed by and construed in accordance with the laws of the Republic of the Philippines, particularly the provisions of the Civil

Code, the Consumer Act of the Philippines (R.A. 7394), and all other applicable laws and regulations.

Any dispute arising from or relating to this Agreement shall be subject to the exclusive jurisdiction of the proper courts of [Insert City or Municipality, e.g., Quezon City], to the exclusion of all other venues.

For any concerns, please contact us at:

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